

1.

CASE #	CASE NAME	HEARING NAME
CVPS2601156	HOME EXPO FINANCIAL INC. VS SPIROPOULOS	DEMURRER ON COMPLAINT OF HOME EXPO FINANCIAL INC.

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.)

The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where the pleading is uncertain, ambiguous, or unintelligible. (C.C.P. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where the complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Id.*)

Demurrer to Entire Complaint:

In response to possible foreclosures in relation to the Covid-19 pandemic, in 2020, the California Legislature passed SB 1079, which in part, added Civil Code § 2924m. (Sen. Rules Com., Off. of Sen. Floor Analyses of Sen. Bill No. 1079 (2019-2020 Reg. Sess.) as amended August 31, 2020.) “The bill proposes a trio of provisions intended to mitigate against blight, vacancy, and the transfer of residential property ownership from owner-occupants to corporate landlords in the event that California experiences a wave of foreclosures.” (*Id.* at p. 2.) The legislative comments noted that decline in homeownership rates, with institutional investors transforming the market into a rental market. (*Id.* at p. 4.)

In pertinent part, Civil Code § 2924m provides that 45 days after a trustee’s sale, “an eligible bidder may submit to the trustee a bid in an amount that exceeds the last and highest bid at the trustee’s sale.” (Civ. Code § 2924m(c)(4).) The statute defines an “eligible bidder” as a “prospective owner-occupant,” which in turn is defined as a “natural person who presents to the trustee an affidavit that...they will maintain their occupancy for at least one year.” (Civ. Code § 2924m(a)(1)(B) and (a)(3)(B).)

Defendant demurs to the entire Complaint, arguing that there is no private right of action under Civil Code § 2924m. However, in the context of a demurrer, the question is not whether the title of the cause of action is one that the plaintiff intended; rather, the test is whether the pleading states any valid claim entitling the plaintiff to relief. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.”]) When there are several causes of action in the complaint, a demurrer to the entire complaint may be overruled if any cause of action is properly stated. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 36.)

1st Cause of Action Fraud:

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.)

“A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. [Citations.]” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Accordingly, to sufficiently allege the defendant made a misrepresentation in a promissory fraud action, the complaint must allege the defendant: (1) made a representation of intent to perform some future action, i.e., a promise, and (2) did not really have that intent at the time that the promise was made, i.e., the promise was false. (*Id.*)

“The essential elements of a count for intentional misrepresentation are: (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage.” (*Chapman v. Skype* (2013) 220 Cal.App.4th 217, 230-231.) The elements of a claim for negligent misrepresentation are: (1) misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented; (4) ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and (5) resulting damage. (*Hasso v. Hapke* (2014) 227 Cal.App.4th 107, 127.)

Every element of a cause of action for fraud and misrepresentation must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47; *Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 185, fn. 14.) “This particularity requirement necessitates pleading *facts* which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Here, Plaintiff alleges that Defendant knowingly made a false misrepresentation to the foreclosure trustee that he would reside in the Property for a year with the intent to induce the foreclosure trustee to allow him to submit a post-sale bid on the Property, that the foreclosure trustee relied on Defendant’s misrepresentations when it declared Defendant the winner of the foreclosure sale, that Plaintiff relied on the misrepresentations when it decided not to immediately file a complaint for declaratory

judgment to determine the correct winner of the foreclosure sale, and that Plaintiff was harmed by the trustee's reliance. (Complaint, ¶¶ 23-30.) Although Plaintiff alleges that he relied on Defendant's misrepresentation to the foreclosure trustee, Plaintiff fails to allege that Defendant made a false misrepresentation that was directed at Plaintiff for the purpose of inducing Plaintiff to rely upon the misrepresentation to his detriment.

2nd Cause of Action for Unjust Enrichment:

"Unjust enrichment is not a cause of action," but rather, is "just a restitution claim." (*De Havilland v. FX Networks, LLC* (2018) 21 Cal.App.5th 845, 870.) In *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, the Fourth District held that the trial court properly sustained a demurrer to an unjust enrichment claim, explaining, "[a]lthough some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation] this court has recently held that '[t]here is no cause of action in California for unjust enrichment. Unjust enrichment is synonymous with restitution.'" (*Levine, supra*, 189 Cal.App.4th at 1138 [internal citations and quotations omitted].)

Defendant's General Demurrer as to the 1st Cause of Action SUSTAINED with leave to amend. Plaintiff to file an amended complaint within 20 days.

Defendant's General Demurrer as to the 2nd Cause of Action SUSTAINED without leave to amend.

Defendant's Special Demurrer as to the 1st and 2nd Causes of Action OVERRULED.

Case Management Conference continued to November 4, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2602316	WIRED WORKS LLC VS H.N. AND FRANCES C. BERGER FOUNDATION	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling: "The Legislature enacted...anti-SLAPP statute [strategic lawsuit against public participation]...to provide a procedural remedy to dispose of lawsuits that are brought to chill the valid exercise of constitutional rights. [Citation.]" (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055.) Code of Civil Procedure section 425.16 provides a two-step test in determining whether a cause of action constitutes a SLAPP. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88; Code Civ. Proc., §425.16(b)(1).) First, the defendant must make the "threshold showing" that the challenged cause of action arises from "protected speech or petition activity." (*Id.*) "[T]he statutory phrase 'cause of action...arising from' means simply that the defendant's act underlying the plaintiff's cause of action must *itself* have been an act in furtherance of the right of petition or free speech." (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78, original italics.) This step is satisfied if the defendant shows that the challenged claims arise from one of the four protected activities provided under Code Civ. Proc., §425.16(e).

Second, "[i]f the court finds the defendant has met this threshold burden, it then determines whether the plaintiff has demonstrated a probability of prevailing on the merits